

ASCII MASTER FLOW – PANEL 1/9: From democratic decentralisation to constitutional local government

ROOT QUESTION

How did village administration become constitutionally protected self-government?

ARTICLE 40 -> organise village Panchayats and endow self-government powers.

1957 Balwant Rai Mehta -> three tiers and democratic decentralisation.

1977-78 Ashok Mehta -> district-centred two-tier alternative.

1985 G.V.K. Rao -> district development administration.

1986 L.M. Singhvi -> constitutional status + Gram Sabha.

73RD AMENDMENT ACT, 1992

Part IX + Eleventh Schedule -> effective 24 April 1993.

CORE LIMIT

constitutional status guarantees democratic form; State law controls devolution substance.

ASCII MASTER FLOW – PANEL 2/9: Part IX architecture: Gram Sabha, tiers and constitutional exceptions

PART IX: ARTICLES 243-243O

243A Gram Sabha | 243B tiers | 243C composition | 243D reservation
243E duration | 243F disqualification | 243G powers | 243H finance
243I SFC | 243J audit | 243K SEC | 243O election bar.

THREE-TIER DEFAULT

district -> intermediate -> village.

State population <= 20 lakh may omit only the intermediate tier.

GRAM SABHA

all registered voters in a village area; exact powers come from State law.

ARTICLE 243M

specified Scheduled/tribal and other excluded areas require distinct legal routes.

PESA, 1996 extends Part IX principles to Fifth Schedule areas with modifications.

ASCII MASTER FLOW – PANEL 3/9: Representation, election, continuity and reservation controls

DEMOCRATIC CYCLE

direct election to territorial seats -> chairperson route under State law
-> five-year term -> election before expiry or within six months of dissolution.

ARTICLE 243D

SC/ST reservation linked to population; not less than one-third seats for women.
Chairperson reservations include women and SC/ST; many States exceed the floor.

ARTICLE 243K

State Election Commission controls Panchayat rolls and elections.

ARTICLE 243O

delimitation/allotment barred from ordinary challenge; election petition is the route.

TRAPS

candidate age floor is 21 | ECI does not conduct Panchayat elections
| reservation creates access but proxy control can block substantive authority.

ASCII MASTER FLOW – PANEL 4/9: Article 243G, Eleventh Schedule and the three-F functionality test

ARTICLE 243G IS ENABLING

State legislature may endow Panchayats with self-government powers.

ELEVENTH SCHEDULE: 29 MATTERS

agriculture/land/water -> rural infrastructure -> health/education
-> poverty alleviation -> welfare -> community assets.

FUNCTIONS

clear activity map and tier responsibility.

FUNCTIONARIES

staff placement, direction and accountability to the elected body.

FINANCES

own revenue + assigned revenue + predictable grants + spending discretion.

FUNCTIONALITY TEST

Can the Panchayat decide, direct staff, spend and answer publicly for outcomes?

ASCII MASTER FLOW – PANEL 5/9: Fiscal constitution: own revenue, SFC, Union grants and audit

ARTICLE 243H

State law may authorise taxes/duties/tolls/fees, assignments, grants and Panchayat Funds.

OWN-SOURCE BASKET

property/market levies | licence/service fees | user charges | rents
| ponds/fisheries/community assets | State-law borrowing.

ARTICLE 243I

Governor constitutes SFC every five years -> tax sharing, assignments, grants and measures.

ARTICLE 280

Union Finance Commission recommends augmentation of State funds for Panchayats on the basis of SFC recommendations.

ACCOUNTABILITY

Article 243J accounts/audit -> public records -> social audit -> corrective action.

LIMIT grants equalise capacity but cannot substitute for State tax devolution.

ASCII MASTER FLOW – PANEL 6/9: PESA, Scheduled Areas and community-centred decision verbs

FIFTH SCHEDULE AREA

ordinary Part IX exclusion under Article 243M -> PESA, 1996 extension with modifications.

PESA GRAM SABHA

community resources + customs + cultural identity + customary dispute practices.

DECISION VERBS MUST STAY DISTINCT

consultation != recommendation != prior recommendation != approval.

LAND AND RESOURCES

prevent alienation + restore unlawfully alienated land

| minor minerals and markets within the exact statutory allocation.

FRA LINK

forest-right recognition and community forest-resource powers overlap but do not merge.

LIMIT PESA is not an unlimited veto over every project or every Scheduled Tribe area.

ASCII MASTER FLOW – PANEL 7/9: Planning, accountability, digital tools and judicial boundary

PLANNING CHAIN

Gram Sabha priorities -> GPDP -> intermediate/district convergence
-> DPC consolidates Panchayat and municipal plans under Article 243ZD.

ACCOUNTABILITY CHAIN

notice + records + quorum/inclusion -> social audit -> audit trail -> follow-up.

DIGITAL TOOLS

eGramSwaraj planning/accounts | AuditOnline audit workflow
| SVAMITVA survey/property cards | RGSA capacity building.

CAUTION

portal entry != lawful devolution, informed consent or service quality.

JUDICIAL BOUNDARY

Gram Nyayalayas Act, 2008 courts != Gram Sabha or Panchayat institutions.

ASCII MASTER FLOW – PANEL 8/9: Panchayat-municipality comparison and controlling local-body cases

PANCHAYATS

Part IX | 73rd | Eleventh 29
Gram Sabha
village/intermediate/district

MUNICIPALITIES

Part IXA | 74th | Twelfth 18
Ward Committee where Article 243S applies
Nagar Panchayat/Council/Corporation

COMMON CONTROLS

SEC elections | SFC fiscal review | DPC planning bridge | State-law devolution.

CASE CODE

Kishansing Tomar (2006) -> timely local elections.
K. Krishna Murthy (2010) -> reservation requires local-body constitutional analysis.
Vikas Kishanrao Gawali (2021) -> OBC-reservation triple test.
State of Goa v. Fouziya Imtiaz Shaikh (2021) -> independent SEC.

LIMIT cases regulate constitutional boundaries; they do not create one national local law.

ASCII MASTER FLOW – PANEL 9/9: Implementation gaps, reform sequence, PYQ routes and final synthesis

DIAGNOSIS

regular elections + representation gains
but vague activity maps + departmental staff + weak own revenue + delayed SFCs.

REFORM SEQUENCE

binding activity map -> accountable local cadre -> predictable untied finance
-> fair own-revenue reform -> strong Gram Sabha -> audit/social audit
-> assisted digital access -> outcome-based GPDP.

PYQ ROUTES

finance beyond grants | women and patriarchy | three Fs to functionality
| intermediate-tier exception | PESA limits.

MAINS SPINE

define decentralisation -> cite Part IX -> explain mechanism -> show gap
-> named case/current anchor -> State-variation qualification -> functionality verdict.

SYNTHESIS

representation becomes self-government only when authority, staff and money converge.